LAST WILL OF MARY BETH SMITH

Pour-Over Will

I, **MARY BETH SMITH**, a resident of Los Angeles County, California, declare that this is my Will. I revoke all prior wills and codicils.

ARTICLE ONE
FAMILY

1.1 **Spouse.** I am married to John Albert Smith, referred to in this Will as my spouse.

1.2 **Children.** The following persons are named as children in our trust:

(a) Emma Rose Smith;

(b) Liam James Smith;

(c) Olivia Jones;

(d) Noah Smith (deceased).

1.3 **Intentional Omission.** Except as provided in this Will and in the trust described below, I have intentionally, and with full knowledge, omitted to provide for my heirs. Without limitation, I make no provision for Robert Smith (brother).

ARTICLE TWO
GIFT TO TRUST

2.1 **Pour-Over Gift.** I give my entire estate to the trustee then serving under The Smith Family Trust, dated **_____, 20____**, which my spouse and I signed as Trustors before signing this Will, to be added to and administered as part of that trust according to its terms, including any amendments made before my death. This gift is made under Probate Code Section 6300 and shall not be invalid because the trust is amendable or revocable.

2.2 **Incorporation by Reference.** If the gift to the trust fails for any reason, I give my estate to the trustee named in that trust, to be held, administered, and distributed under the terms of the trust as they exist on the date of this Will, which I incorporate by reference.

2.3 **Powers of Appointment.** I do not exercise any power of appointment by this Will, except as I may expressly state in a later codicil.

ARTICLE THREE
EXECUTOR

3.1 **Nomination.** I nominate my spouse as executor of this Will. If my spouse fails to qualify or ceases to act, I nominate the following, in the order listed:

(a) Liam James Smith (son);

(b) Olivia Jones (daughter).

3.2 **Bond and Independent Administration.** No bond shall be required of any executor. My executor shall have full authority to administer my estate under the Independent Administration of Estates Act (Probate Code Section 10400 and following).

3.3 **Tax Elections.** My executor may make any tax election, including the election to transfer my unused exclusion amount to my spouse under Section 2010(c)(5)(A) of the Internal Revenue Code, without adjustment among beneficiaries.

ARTICLE FOUR
GUARDIAN

4.1 **Nomination of Guardian.** If my spouse does not survive me or is unable to act, I nominate the following, in the order listed, as guardian of the person and estate of each minor child of mine, under Probate Code Section 1500 and following:

(a) Sarah Lee (niece), to serve jointly with David Lee;

(b) Olivia Jones.

4.2 **No Bond.** No bond shall be required of any guardian nominated in this Will.

ARTICLE FIVE
GENERAL PROVISIONS

5.1 **Debts and Taxes.** My executor may request that the trustee of the trust pay my debts, expenses of administration, and any estate taxes, as provided in the trust.

5.2 **No-Contest Clause.** Any beneficiary who, without probable cause, brings a direct contest (as defined in Probate Code Section 21310) of this Will, the trust, or any other protected instrument, or who files a creditor's claim or a pleading challenging a transfer on the ground that the property was not mine, shall take nothing under this Will. This Section shall be enforced only to the extent permitted by Probate Code Sections 21310 through 21315.

5.3 **Governing Law.** This Will shall be construed under California law.

I subscribe my name to this Will on _____, 20____, at _____, California, and declare under penalty of perjury under the laws of the State of California that I sign and execute this instrument as my Will, that I sign it willingly, that I execute it as my free and voluntary act, and that I am eighteen years of age or older, of sound mind, and under no constraint or undue influence.

_____

MARY BETH SMITH
Testator

ATTESTATION AND DECLARATION OF WITNESSES

On the date written below, Mary Beth Smith (the "Testator") declared to us, the undersigned, that this instrument, consisting of 3 pages including the page signed by us as witnesses, is the Testator's Will and asked us to act as witnesses to it. The Testator then signed this Will in our presence, all of us being present at the same time. We now, at the Testator's request, in the Testator's presence, and in the presence of each other, sign our names as witnesses. Each of us is now eighteen years of age or older and a competent witness, and resides at the address written after our name. We understand that this instrument is the Testator's Will. To the best of our knowledge, the Testator is eighteen years of age or older, is of sound mind, and is under no constraint or undue influence of any kind. Neither of us is named as a beneficiary in this Will.

We declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 20____, at _____, California.

Witness 1 signature: _____

Printed name: _____

Residence address: _____

Witness 2 signature: _____

Printed name: _____

Residence address: _____